

Medical Screening Exam (EMTALA)

Mandatory Screening for Emergency Care

Regulation: 42 CFR §489.24 | EMTALA

POLICY OVERVIEW

The Emergency Medical Treatment and Labor Act (EMTALA) requires hospitals with emergency departments that participate in Medicare to provide a Medical Screening Examination (MSE) to any individual who presents seeking care, regardless of ability to pay.

KEY REQUIREMENTS

1 Medical Screening Examination

A qualified medical professional must perform an MSE on every individual who presents to the ED or hospital property requesting examination or treatment for a medical condition. The MSE must be the same regardless of payment status.

2 Stabilization Requirement

If an Emergency Medical Condition (EMC) is identified, the hospital must provide stabilizing treatment within its capabilities before transferring or discharging the patient.

3 Transfer Protocols

Transfers of unstabilized patients may only occur if: the patient requests transfer, a physician certifies benefits outweigh risks, and the receiving facility has accepted the patient and has appropriate capabilities.

4 On-Call Physician Responsibilities

Hospitals must maintain on-call lists and ensure on-call specialists respond to EMTALA obligations within a reasonable time when called to provide stabilizing care.

5 Anti-Dumping Provisions

No hospital may delay MSE or stabilizing treatment to inquire about insurance status or payment ability. Financial screening may not occur prior to clinical screening.

COMPLIANCE NOTES

EMTALA violations can result in civil monetary penalties up to \$119,942 per violation for the hospital and up to \$119,942 per violation for the responsible physician. Termination from Medicare participation is also possible.

COMMON SURVEY CITATIONS

Most cited under §489.24(a) – Appropriate MSE, §489.24(d) – Stabilization requirements, and §489.24(e) – Restricting transfer.